

SENATE CHAMBER
STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. _____

☐ COMMITTEE AMENDMENT

(Date)

I move to amend House Joint Resolution No. 1067 as follows:

1. On Page 1, Line 18, through Page 2, Line 15, by removing SECTION 1, by inserting the attached new SECTIONS 1, 2, and 3, and by renumbering subsequent sections;
2. On Page 2, Line 16, by inserting after the number “2.” and before the word “The”, the letter “A.”;
3. On Page 2, Line 17, by deleting after the word “resolution” and before the word “if”, the words “shall not become effective” and inserting the words “and the legislative referendum as ordered in SECTION 2 and as set forth in SECTION 3 of this resolution shall be withdrawn from the ballot”;
4. On Page 2, Line 20 ½, by inserting the following new subsection B:

“B. The proposed Constitutional amendment as set forth in SECTION 1 of this resolution and the statutory provisions as set forth in SECTION 3 of this resolution shall only become effective if the federal medical assistance percentage (FMAP) established under 42 U.S.C., Section 1396d(y) is reduced below ninety percent (90%).”
5. On Page 2, Line 22, by inserting after word “resolution” and before the word “shall”, the words “and the legislative referendum as ordered in SECTION 2 and as set forth in SECTION 3 of this resolution”;
6. On Page 3, Lines 3 through 14, by deleting after the word “Constitution” on Line 3 and before the period “.” on Line 14, all language and inserting the following language: “by repealing Sections 1, 2, 3, and 4 of Article 25-A. It enacts substantially the same language related to Medicaid expansion from the repealed constitutional provisions into the Oklahoma statutes. The statutes could be amended, repealed, or otherwise modified by the Legislature pursuant to the same procedures that allow enactment of laws during any regular or extraordinary session of the Legislature. These changes will only become effective if federal Medicaid funding for the Medicaid expansion population drops below 90%”;
7. On Page 3, Line 21, by deleting after the word “SECTION” and before the word “hereof”, the number “3” and inserting the number “5”; and
8. By amending the title to conform.

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☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

Submitted by:

Senator Daniels

Daniels-DC-FA-HJR1067
4/13/2026 1:57 PM

1 SECTION 1. The Secretary of State shall refer to the people
2 for their approval or rejection, as and in the manner provided by
3 law, a proposed amendment to the Oklahoma Constitution to repeal
4 Sections 1, 2, 3 and 4 of Article XXV-A of the Oklahoma
5 Constitution.

6 SECTION 2. Pursuant to Section 3 of Article V of the Oklahoma
7 Constitution, there is hereby ordered the following legislative
8 referendum which shall be filed with the Secretary of State and
9 addressed to the Governor of the state, who shall submit the same
10 to the people for their approval or rejection at the next General
11 Election.

12 SECTION 3. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1011.26 of Title 56, unless
14 there is created a duplication in numbering, reads as follows:

15 A. As used in this section:

16 1. "Low-income adults" refers to those individuals over
17 eighteen (18) years of age and under sixty-five (65) years of age

(Floor Amendments Only) Date and Time Filed: _____

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Untimely

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Secondary Amendment

1 whose income does not exceed one hundred thirty-three percent
2 (133%) of the federal poverty level, as described by and using the
3 income methodology provided in the federal Medicaid statute at 42
4 U.S.C., Section 1396a(a)(10)(A)(i)(VIII), and who meet applicable
5 nonfinancial eligibility conditions for Medicaid under 42 C.F.R.,
6 Part 435, Subpart E;

7 2. "Medical assistance" means payment of part or all of the
8 cost of the care and services, or the care and services themselves,
9 or both, as provided in the federal Medicaid statute, 42 U.S.C.
10 Section 1396 et seq.;

11 3. "Oklahoma Health Care Authority" refers to the single state
12 agency responsible for administering the state Medicaid program
13 pursuant to 42 U.S.C., Section 1396a(a)(5); and

14 B. In addition to those otherwise eligible for medical
15 assistance under the state Medicaid program, the state shall
16 provide medical assistance under the state Medicaid program to low-
17 income adults.

18 C. The Oklahoma Health Care Authority shall take all actions
19 necessary to maximize federal financial participation in funding
20 medical assistance pursuant to this section.

21 D. The provisions of this section shall only become effective
22 if the federal medical assistance percentage (FMAP) established
23 under 42 U.S.C., Section 1396d(y) is reduced below ninety percent
24 (90%).

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